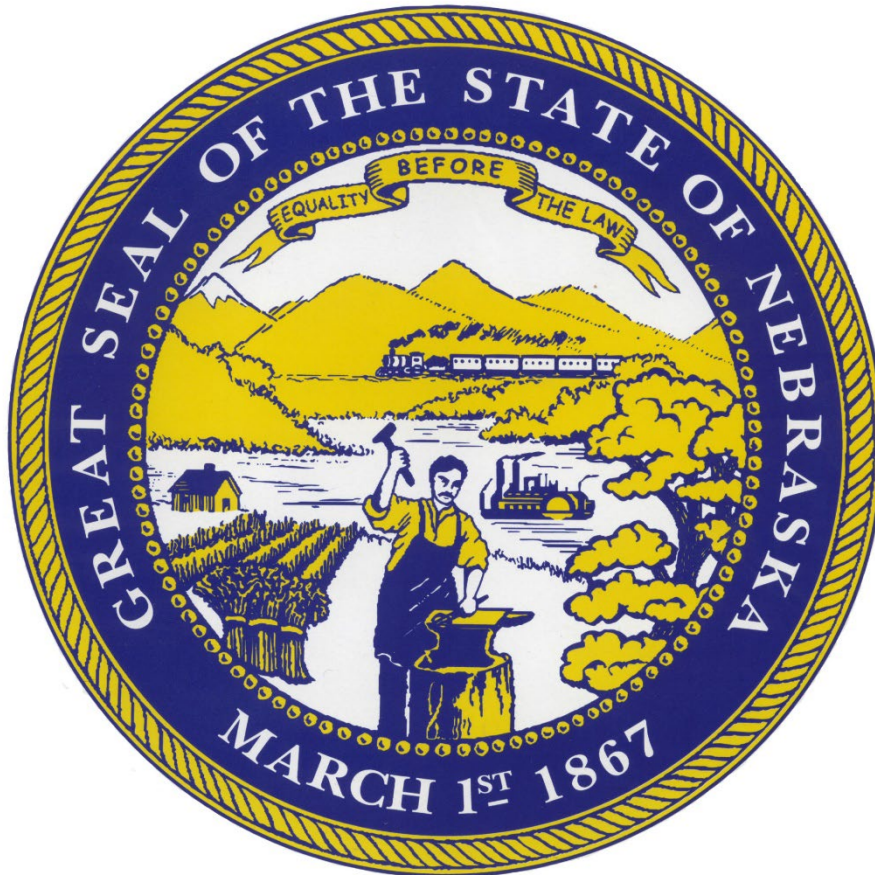


Statewide Candidate Filing Guide 2026

Revised January 2026

Robert B. Evnen
Nebraska Secretary of State



This guidance document is advisory in nature but is binding on an agency until amended by such agency. A guidance document does not include internal procedural documents that only affect the internal operations of the agency and does not impose additional requirements or penalties on regulated parties or include confidential information or rules and regulations made in accordance with the Administrative Procedure Act. If you believe that this guidance document imposes additional requirements or penalties on regulated parties, you may request a review of the document.

Table of Contents

Offices for 2026 Elections 4

Which offices are up for election in 2026?..... 4

What are the qualifications for public office? 5

Can a former felon hold public office? 6

Can I run for ____ office and ____ office at the same time? 7

When, Where, & How Much? 8

When does the 2026 candidate filing period begin? 8

Where do I file? 8

How much are the filing fees? 9

Do you take debit or credit cards? 9

To whom do I make a check out to? 9

Do I need to pay a filing fee if I am a write-in candidate? 9

Can I get a refund if I withdraw from a contest? 9

When do judges file for retention? 9

Filling Out the Filing Form..... 10

Can I have my name printed on the ballot with a prefix (Mr., Dr., etc.) or nickname? 10

What is a pronunciation or spoken spelling? 10

Do I need to get my candidate filing form notarized? 11

Can I email or fax my candidate filing form? 11

How will I know that my candidate filing was accepted? 11

What information appears on the public candidate filing list published by the Secretary of State?..... 11

What happens if my filing is rejected? 12

Petitioning Onto the Ballot..... 13

Petitioning for partisan offices..... 13

Petitioning for nonpartisan offices..... 13

When is there a vacancy on the ballot? 13

Where do I get candidate petitions?..... 13

What are the rules regarding petition circulation? 14

How many signatures do I need to collect? (Neb. Rev. Stat. §32-618): 15

Where can I circulate my petition? 16

When is the deadline to file a completed petition? 16

What happens after filing the petition? 16

How will my name appear on the ballot? 16

Write-In Candidates..... 17

Which offices can I file for as a write-in? 17

If I file as a write-in, will my name be placed on the ballot?..... 17

Will a write-in vote still count if my name is spelled wrong? 17

How are write-in votes counted?..... 17

How do I win the nomination or election as a write-in?..... 17

Where do I file a write-in affidavit? 18

Can I withdraw my write-in affidavit? 18

Can I ask voters to use a sticker with my name on the write-in line? 18

Withdrawing as a Candidate..... 19

Can I withdraw before a primary or general election? 19

What happens if I miss the withdrawal deadline?..... 19

Campaign Finance & Campaigning..... 20

Nebraska Accountability and Disclosure Commission (NADC)..... 20

Do I need to file a Statement of Financial Interests (Form C-1) with the NADC? 20

Where can I find the Form C-1? 21

Can I email or fax my Form C-1? 21

What happens if I miss the deadline to file a Form C-1? 21

Do I have a conflict of interest? 21

Is it too early to campaign or put out yard signs? 21

Where am I prohibited from placing campaign materials? 21

When can I start putting up yard signs, billboards, etc.?..... 21

Can I use the state seal in my campaign?..... 22

What is electioneering? 22

Can I campaign at the polls? 22

Where can I get a list of people who were sent an early voting ballot? 22

Where can I get a list of registered voters?..... 23

Offices for 2026 Elections

Which offices are up for election in 2026?

Partisan Offices: *A candidate must be registered to vote as a member of one of the four recognized political parties in Nebraska — Republican, Democratic, Libertarian, or Legal Marijuana NOW.*

Note: A candidate for partisan office cannot change their political party from one party to another after December 5, 2025 (Neb. Rev. Stat. [§32-612](#)). This does not include a candidate with no political party affiliation (nonpartisan) declaring a political party affiliation.

Partisan federal and state offices up for election in 2026 include:

- United States Senate
- U.S. House of Representatives (Districts 1, 2, & 3)
- Governor & Lieutenant Governor
- Secretary of State
- State Treasurer
- Attorney General
- Auditor of Public Accounts
- Public Service Commissioner (District 2)

Nonpartisan Offices: *A candidate runs for office without regard to their political party or lack thereof. A candidate's political party will not be noted on the ballot.*

Nonpartisan state offices up for election in 2026 include:

- Legislature (even-numbered districts)
- Legislature District 41 (2-Year Term)
- State Board of Education (Districts 5, 6, 7, & 8)
- Board of Regents of the University of Nebraska District 4 (4-Year Term)
- Board of Regents of the University of Nebraska (Districts 1 & 2)
- Community Colleges
- Douglas-Sarpy Learning Community Coordinating Council (odd-numbered districts)
- Natural Resources Districts
- Metropolitan Utilities District of Omaha (Districts 3, 4, & 5)
- Public Power (& Irrigation) Districts
- Educational Service Units (odd-numbered districts)
- Reclamation Districts

What are the qualifications for public office?

Different public offices have different qualifications. Below are the qualifications for certain statewide offices.

Elected Office	References and Statutes	Filing Qualifications
U.S. Senate	U.S. Const. I-3 Neb. Rev. Stat. §32-502	• Affiliated with the appropriate political party • Nebraska resident when elected • United States citizen for 9 years before serving • At least 30 years old before serving
U.S. House of Representatives	U.S. Const. I-2 Neb. Rev. Stat. §32-503	• Affiliated with the appropriate political party • Nebraska resident when elected • United States citizen for 7 years before serving • At least 25 years old before serving
Governor & Lieutenant Governor	Neb. Const. IV-1 Neb. Const. IV-2 Neb. Rev. Stat. §32-506	• Registered voter in Nebraska affiliated with the appropriate political party • United States citizen for 5 years when elected • Nebraska resident for 5 years prior to election • At least 30 years of age before serving • Lt. Gov. must be same political party as Gov.
Secretary of State	Neb. Const. IV-1 Neb. Rev. Stat. §32-507	• Registered voter in Nebraska affiliated with the appropriate political party
State Treasurer	Neb. Const. IV-1 Neb. Const. IV-3 Neb. Rev. Stat. §32-507	• Registered voter in Nebraska affiliated with the appropriate political party
Attorney General	Neb. Const. IV-1 Neb. Rev. Stat. §32-507	• Registered voter in Nebraska affiliated with the appropriate political party
Auditor of Public Accounts	Neb. Const. IV-1 Neb. Rev. Stat. §32-507	• Registered voter in Nebraska affiliated with the appropriate political party
Public Service Commissioner	Neb. Const. IV-20 Neb. Rev. Stat. §32-509 Neb. Rev. Stat. §75-101	• Registered voter of the district affiliated with the appropriate political party
Legislature	Neb. Const. III-8 Neb. Const. III-9 Neb. Const. III-12 Neb. Rev. Stat. §32-508	• Registered voter of the district • Resident of the district for 1 year prior to election • At least 21 years old when elected
State Board of Education	Neb. Const. VII-3 Neb. Rev. Stat. §32-511 Neb. Rev. Stat. §79-313	• Registered voter of the district • Resident of the district for 6 months prior to election
Board of Regents of the University of Nebraska	Neb. Const. VII-10 Neb. Rev. Stat. §32-510	• Registered voter of the district

Elected Office	References and Statutes	Filing Qualifications
Community Colleges	Neb. Rev. Stat. §32-514 Neb. Rev. Stat. §85-1512	• Registered voter of the district OR • If an at-large candidate, registered voter of the area • Resident of the district or area for 6 months prior to election
Douglas-Sarpy Learning Community Coordinating Council	Neb. Rev. Stat. §32-546.01 Neb. Rev. Stat. §32-555.01	• Registered voter of the subcouncil district
Natural Resources Districts	Neb. Rev. Stat. §32-513 Neb. Rev. Stat. §2-3214	• Registered voter of the subdistrict OR • If an at-large candidate, registered voter of the district
Metropolitan Utilities District of Omaha	Neb. Rev. Stat. §32-540 Neb. Rev. Stat. §14-2102 Neb. Rev. Stat. §14-2103	• Registered voter of the district
Public Power Districts ≥\$40 million (Dawson, Loup River, Nebraska, Norris, Omaha, & Southern)	Neb. Rev. Stat. §32-512 Neb. Rev. Stat. §70-610 Neb. Rev. Stat. §70-619	• Registered voter residing within the chartered territory or subdivision OR • Retail customer duly certified
Public Power Districts <\$40 million	Neb. Rev. Stat. §32-512 Neb. Rev. Stat. §70-610 Neb. Rev. Stat. §70-619	• Registered voter residing within the chartered territory or subdivision OR • Retail customer duly certified
Reclamation Districts	Neb. Rev. Stat. §32-516 Neb. Rev. Stat. §46-530	• Registered voter of the district
Educational Service Units	Neb. Rev. Stat. §32-515 Neb. Rev. Stat. §79-1217	• Registered voter • Registered voter residing within the ESU area while serving

Can a former felon hold public office?

A person who was convicted of a felony cannot hold state or local office unless their civil rights have been restored in accordance with Neb. Rev. Stat. [§29-112](#).

If the felony was committed in Nebraska, the individual would need to be pardoned by the State of Nebraska Board of Pardons. More information can be found at pardons.nebraska.gov.

The civil right to hold office is separate from the civil right to vote. Voting rights are restored after the sentence is completed, including any parole (Neb. Rev. Stat. [§32-313](#)).

Can I run for ____ office and ____ office at the same time?

Certain high offices cannot hold or run for more than one office at a time.

HIGH OFFICE

Offices that cannot hold more than one office or run for more than one office at a time
(Neb. Rev. Stat. [§32-603](#))

U.S. Senate
U.S. House of Representatives
Governor & Lieutenant Governor
Secretary of State
State Treasurer
Attorney General
Auditor of Public Accounts
Public Service Commissioner
Legislature
State Board of Education
Board of Regents of the University of Nebraska

OTHER HIGH OFFICES

High offices can hold one or more low office at the same time

Can run for 1 high and 1 or more low offices, but not 2 high offices at the same time

Community College (Neb. Rev. Stat. [§85-1512](#) – may not hold office on any other board relating to education)
Learning Community Coordinating Council
Regional Metropolitan Transit Authority
County Office (including Weed Board)
City Officer
School Board Member

LOW OFFICES

Natural Resources District
Metropolitan Utilities District of Omaha
Public Power District
Reclamation District
Educational Service Unit
Airport Authority
Township Officer
SID Board Member
Village Board of Trustees

When, Where, & How Much?

When does the 2026 candidate filing period begin?

Filing for office starts January 5, 2026. For offices that appear on the primary election ballot, the incumbent (**any* current office holder**) filing deadline is February 17 and the nonincumbent (**new filer**) filing deadline is March 2.

For offices that only appear on the general election ballot, the incumbent filing deadline is July 15 and the nonincumbent filing deadline is August 3.

**Neb. Rev. Stat. [§32-111](#) defines an incumbent as a “person whom the canvassers or the courts declare elected to an elective office or who has been appointed to an elective office.” If you hold any elected office, you are an incumbent and the incumbent deadline applies, even if you are filing for an office other than the one you currently hold.*

Where do I file?

Statewide offices file with the Secretary of State’s office. These include:

- U.S. Senate
- U.S. House of Representatives
- Governor, Secretary of State, State Treasurer, Attorney General, & Auditor of Public Accounts
- Public Service Commissioner
- Legislature
- State Board of Education
- Board of Regents of the University of Nebraska
- Community Colleges
- Douglas-Sarpy Learning Community Coordinating Council
- Natural Resources Districts
- Metropolitan Utilities District of Omaha
- Public Power (& Irrigation) Districts
- Reclamation Districts
- Educational Service Units

If you wish to file in-person, you can go to the Elections Division office at:

301 S. 13th St., Ste. 410
Lincoln, NE 68508

How much are the filing fees?

FILING FEE SCHEDULE FOR 2026

OFFICE	SALARY (\$)	FILING FEE (\$)
United States Senator	174,000.....	1,740
Representative in Congress	174,000.....	1,740
Governor	105,000.....	1,050
Secretary of State.....	85,000.....	850
State Treasurer.....	85,000.....	850
Attorney General	95,000.....	950
Auditor of Public Accounts.....	85,000.....	850
Public Service Commissioner	75,000.....	750
Legislature	12,000.....	120
State Board of Education.....		25
Board of Regents of the University of Nebraska.....		25
Metropolitan Utilities District of Omaha.....		25
Public Power Districts ≥\$40 million (Dawson, Loup River, Nebraska, Norris, Omaha, & Southern).....		25
Public Power Districts <\$40 million (all other power districts)		10
Reclamation Districts.....		10
Community Colleges		No filing fee
Educational Service Units.....		No filing fee
Natural Resources Districts		No filing fee
Douglas-Sarpy Learning Community Coordinating Council.....		No filing fee

Do you take debit or credit cards?

No — filing fees can only be paid with cash, money order, or check.

To whom do I make a check out to?

Checks should be made payable to the Secretary of State.

Do I need to pay a filing fee if I am a write-in candidate?

Write-in candidates are required to pay the appropriate filing fee for the office they are seeking when they file their write-in affidavit (Neb. Rev. Stat. [§32-608](#)).

Can I get a refund if I withdraw from a contest?

A refund is only given if a candidate dies prior to an election, in which case the spouse of the candidate can request a refund prior to the election (Neb. Rev. Stat. [§32-608](#)).

When do judges file for retention?

Judges are up for retention during the first general election that occurs more than 3 years after their appointment and every 6 years thereafter (Neb. Const. [V-21](#)). Judicial officeholders up for retention in 2026 must file by August 3 (Neb. Rev. Stat. [§24-814](#)).

Filling Out the Filing Form

You can find candidate filing forms for statewide offices beginning in December 2025 on the Secretary of State's website at sos.nebraska.gov or by stopping by the Elections Division at 301 S. 13th St., Ste. 410 in Lincoln.

To successfully complete a candidate filing form, you must fill out all required sections, including checking the box stating you do not owe civil penalties.

Write any information in the optional section that you would like to have included on the public candidate filing list.

Sign the form in front of an election official (such as an election commissioner or county clerk) or a notary public. Double-check your filing form and make sure there are no clerical errors that might delay the effective date of your filing.

Send the original, notarized form along with any required filing fee to:

**Secretary of State, Elections Division
P.O. Box 94608
Lincoln, NE 68509**

Can I have my name printed on the ballot with a prefix (Mr., Dr., etc.) or nickname?

Neb. Rev. Stat. [§32-607\(1\)\(b\)](#) describes permissible names for use on the ballot. Prefixes such as "Mr.," "Dr.," and "Prof." are titles and therefore cannot appear on the ballot.

Additionally, nicknames cannot be used as an additional identifier; a name cannot appear on the ballot as "John 'Jack' Smith," but either "John Smith" or "Jack Smith" are allowed.

What is a pronunciation or spoken spelling?

If you were to explain in words how to say your name, how would you do that? Ballot marking devices at polling places read the ballot out loud for voters with limited vision. By providing a pronunciation or spoken spelling, you can ensure your name is pronounced correctly.

For Example:

Sue Jahn = Sue Hahn (rhymes with fawn)

William Mishaud = mee-SHO ('d' is silent)

Tanya Monte =TAWN –yuh (not TAN) mahn-TEA

Do I need to get my candidate filing form notarized?

Yes, you must sign your candidate filing form in front of an election official or a notary public (Neb. Rev. Stat. [§32-242](#)). The Elections Division can notarize your signature if you file in person.

Can I email or fax my candidate filing form?

You cannot email your candidate filing form; however, you can fax your candidate filing form and a copy of your cash, money order, or check (if applicable) to our fax machine at (402) 471-7834. The fax must be received in our office on or before the filing deadline.

You are also required to mail your original filing form and filing fee (if any) — it must be postmarked on or before the deadline **and** received in the Secretary of State's office no later than seven days after the filing deadline (Neb. Rev. Stat. [§32-606](#)).

How will I know that my candidate filing was accepted?

When your candidate filing is accepted, our office will send you a confirmation letter with a copy of your filing. You can also check the list of candidates who have filed on our website.

What information appears on the public candidate filing list published by the Secretary of State?

Our office's candidate filing list includes the following:

- The office the candidate is seeking;
- The office's term length;
- The candidate's political party (if a partisan office);
- The candidate's name;
- The candidate's city of residence;
- The candidate's phone number;
- The candidate's email address (if provided); and
- The candidate's mailing address (if provided).

Our office will not publish a candidate's residential street address on our website.

The candidate filing list is published on the last business day of each week. As candidate filing deadlines approach, our office will begin publishing a candidate filing list each business day.

What happens if my filing is rejected?

A candidate filing form can be rejected for several reasons. Some rejection reasons include:

- The registered voter's name listed on your filing form does not match the name listed on your voter registration.
- The address listed on your filing form does not match the address listed on your voter registration.
- The address listed on your filing form is not within the district for which you are filing.
- The checkbox was not checked to indicate that you do not owe civil penalties pursuant to the Nebraska Political Accountability and Disclosure Act.
- The candidate filing form was incorrectly notarized.
- The candidate filing form was not signed by the candidate in front of a notary public or election official.
- The candidate filing form was received prior to the start of candidate filing.
- The candidate filing form was received after the candidate filing deadline.
- The applicable filing fee was not included with the candidate filing form.

Our office will attempt to call and will send a letter detailing why your filing was rejected, along with the original filing form and any filing fees that were submitted. Unless otherwise indicated, you can file a new candidate filing form with our office. Filing deadlines still apply.

Petitioning Onto the Ballot

Petitioning for partisan offices

Neb. Rev. Stat. [§32-616](#) states that any person may petition onto the ballot who was not registered to vote with a party affiliation on or after March 1 and before the general election in the calendar year of the general election may file petitions for a partisan office. If there is a vacancy (created by someone ceasing to be a candidate), the vacancy shall only be filled by the political party (Neb. Rev. Stat. [§32-627](#)). A vacancy is not created when no one filed for a partisan office in the primary.

Petitioning for nonpartisan offices

A person may only petition onto the general election ballot if the vacancy requirements described in Neb. Rev. Stat. [§32-625](#) are met. If a nominated candidate declines their nomination, you may petition onto the ballot for the general election even if you lost the nomination in the primary. If there were no candidate filings for the office, you may petition onto the ballot.

When is there a vacancy on the ballot?

A vacancy on the general election ballot exists when:

- The candidates who have filed number less than twice the number of vacancies AND a candidate who filed for the primary ceases to be a candidate or declines the nomination
- No one filed for the position (nonpartisan races only)
- One of the candidates who received a nomination from the primary for a nonpartisan office is ineligible, disqualified, deceased, or for any other reason unable to assume the office for which they were a candidate

A vacancy does NOT exist on the ballot when:

- No person was nominated for the office on any particular political party's partisan ballot (Neb. Rev. Stat. [§32-627](#))

Where do I get candidate petitions?

If you are interested in petitioning onto the ballot, you can contact our office to receive the correct petition forms. You are required to submit samples of your candidate petition to the Secretary of State's office prior to circulation.

What are the rules regarding petition circulation?

There are rules for the individuals who circulate candidate petition forms as well as those who sign the petition. **Rules for circulators of petition forms are as follows:**

- 1. Circulators must be at least eighteen years of age.**
- 2. Circulators must witness each signature added to the petition they are circulating.** A circulator may not leave the petition at a location and return later to collect a completed form, as circulators are required to read the object statement on the petition to each signer; they also must sign an oath attesting to the fact that they did this.
- 3. Circulators may not offer or give anything of value to a potential signer to get them to sign the petition;** it is a Class IV felony to do so and may be punished by up to two years imprisonment and twelve months post-release supervision, a fine of up to ten thousand dollars, or both.
- 4. Circulators may be paid or may be volunteers.** If the circulator is paid to circulate the petition, they must use a petition form that discloses to the signer that they are being paid. If the circulator is a volunteer, the form must contain the volunteer disclosure.
- 5. When the circulator is finished collecting signatures on the petition form, they must sign the oath on the form in the presence of a notary public.** The circulator should read the oath carefully, as there are criminal penalties for falsely swearing to the oath.

Once a petition form is completed, the circulator should return the petition form to the sponsor(s) of the petition.

Rules for signers of petition forms are as follows:

- 1. The signer must be registered to vote on or before the date the petition is filed with the Secretary of State's office.**
- 2. A signer may not sign any name other than their own to a petition.**
- 3. A signer may not sign a petition more than once.**
- 4. The signer may not accept anything of value for signing the petition.**

If a signer makes a mistake as they sign the petition, it is permissible to cross out the incorrect signature line without affecting the other signatures on the petition.

How many signatures do I need to collect? (Neb. Rev. Stat. [§32-618](#)):

Elected Office	Number of Signatures Required
U.S. Senate	• At least 4,000 signatures • At least 750 signatures must be collected from registered voters in each of the three congressional districts
U.S. House of Representatives	• At least 20% of registered voters in the applicable district who voted for President in 2024 • Not to exceed 2,000
Governor	• At least 4,000 signatures • At least 750 signatures must be collected from registered voters in each of the three congressional districts
Secretary of State	• At least 4,000 signatures • At least 750 signatures must be collected from registered voters in each of the three congressional districts
Attorney General	• At least 4,000 signatures • At least 750 signatures must be collected from registered voters in each of the three congressional districts
Auditor of Public Accounts	• At least 4,000 signatures • At least 750 signatures must be collected from registered voters in each of the three congressional districts
Public Service Commissioner	• At least 20% of registered voters in the applicable district who voted for President in 2024 • Not to exceed 2,000
Legislature	• At least 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000
State Board of Education	• At least 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000
Board of Regents of the University of Nebraska	• At least 10% of registered voters of the regent district who voted for President in 2024 • Not to exceed 1,000
Community Colleges	• At least 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000
Douglas-Sarpy Learning Community Coordinating Council	• At least 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000
Natural Resources Districts	• At least 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000
Metropolitan Utilities District of Omaha	• At least 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000

Elected Office	Number of Signatures Required
Public Power Districts > \$40 million (Dawson, Loup River, Nebraska, Norris, Omaha, & Southern)	• At least 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000
Public Power Districts < \$40 million	• At least 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000
Reclamation Districts	• At least 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000
Educational Service Units	• 10% of registered voters of the applicable political subdivision who voted for President in 2024 • Not to exceed 2,000

Where can I circulate my petition?

There are few specific restrictions as to where a circulator may gather signatures. There may be time and place restrictions on public property so as not to disrupt activities at those locations. Circulation on private property is at the discretion of the property owner.

Neb. Rev. Stat. [§32-1524](#) restricts petitions from being circulated within 200 feet of a polling place or building that is set up for voters to cast ballots. This includes county election officials' offices during early voting.

When is the deadline to file a completed petition?

The deadline to file a petition to place your name on the ballot is August 3, 2026, for partisan offices and September 1, 2026, for nonpartisan offices. All petition pages to be submitted for verification must be submitted at the same time. Along with the petition, you must pay the appropriate filing fee for the office you are seeking to run for.

What happens after filing the petition?

After you file a petition, our office will complete the signature verification process. If you submit a successful petition, our office will notify you within three days after the signatures are verified that you have been nominated. You must file an acceptance of nomination with our office within five days of being notified. Once the acceptance is filed, your name will appear on the ballot (Neb. Rev. Stat. [§32-617](#)).

How will my name appear on the ballot?

Your name will be placed on the ballot as listed on your petition and the words "BY PETITION" will be printed after your name (Neb. Rev. Stat. [§32-617](#)).

Write-In Candidates

A write-in candidate is a candidate who did not file as a candidate to be placed on the ballot but can be nominated or elected.

Which offices can I file for as a write-in?

You can file a write-in affidavit for any public office.

If I file as a write-in, will my name be placed on the ballot?

Your name will not be placed on the ballot. Every office up for election is required to have a write-in line below the filed candidates on the ballot for that race. Individuals choosing to vote for you will need to write your name on the write-in line and shade in the corresponding oval (Neb. Rev. Stat. [§32-816](#)).

Will a write-in vote still count if my name is spelled wrong?

Write-in candidate names that are misspelled are still counted as long as it is a reasonably close spelling of the last name (Neb. Rev. Stat. [§32-1005](#)).

How are write-in votes counted?

Write-in votes are not counted individually if the total number of write-ins is less than five percent of the vote for such office in the county **and** the county election official believes that such vote will not impact the outcome of the election. In that case, all write-in votes for that office may be counted and listed together as one total (Neb. Rev. Stat. [§32-1008](#)).

How do I win the nomination or election as a write-in?

A write-in candidate wins the nomination during the primary election if they:

- Receive at least 5% of the total votes cast for President in the 2024 general election in the political subdivisions from which nominees for such position are to be chosen **AND**
- Are one of the candidates receiving the highest number of votes qualifying them for the nomination (Neb. Rev. Stat. [§32-814](#)).

A write-in candidate wins the election during the general election if they:

- Are one of the candidates receiving the highest number of votes qualifying them for the election.

Where do I file a write-in affidavit?

Write-in affidavits for statewide offices must be filed with the Secretary of State. You can find the write-in affidavit on the Secretary of State's website at sos.nebraska.gov or at the Elections Division at 301 S. 13th St., Ste. 410 in Lincoln. You must file a write-in affidavit by the following dates:

Primary write-in candidate deadline: May 1, 2026

General write-in candidate deadline: October 23, 2026

You must include the appropriate filing fee with the write-in affidavit.

Can I withdraw my write-in affidavit?

Write-in candidates can withdraw by the following dates:

Primary election write-in: May 1, 2026

General election write-in: October 23, 2026

To withdraw, you must fill out a Candidate Withdrawal form. Candidate Withdrawals for statewide offices must be filed with the Secretary of State. Filing fees, if any, are not refunded to candidates who withdraw.

Can I ask voters to use a sticker with my name on the write-in line?

Our office strongly advises against this, as stickers would jam tabulating equipment and could fall off or be tampered with.

Withdrawing as a Candidate

Can I withdraw before a primary or general election?

A candidate who wishes to withdraw before an election must do so by the following dates:

Candidates who file for the primary election: March 2, 2026

Candidates who file for the general election: August 3, 2026

To withdraw, you must fill out a Candidate Withdrawal form and submit it to the Secretary of State. This form is available on our website on the “Candidate Filing Resources” page.

What happens if I miss the withdrawal deadline?

Candidates who miss the withdrawal deadline will appear on the ballot.

If you win the primary nomination, you may choose to fill out a declination of nomination after results have been canvassed. The deadline to file the declination of nomination is August 3 (Neb. Rev. Stat. [§32-623](#)).

If you miss the declination of nomination deadline, your name will appear on the general election ballot.

Campaign Finance & Campaigning

Nebraska Accountability and Disclosure Commission (NADC)

Centre Terrace Bldg.
1225 L St., #400
P.O. Box 95086
Lincoln, NE 68509
Phone: (402) 471-2522

Do I need to file a Statement of Financial Interests (Form C-1) with the NADC?

Elected Office	Form C-1 Required
U.S. Senate	X
U.S. House of Representatives	X
Governor & Lt. Governor	✓
Secretary of State	✓
State Treasurer	✓
Attorney General	✓
Auditor of Public Accounts	✓
Public Service Commissioner	✓
Legislature	✓
State Board of Education	✓
Board of Regents of the University of Nebraska	✓
Public Power Districts > \$40 million (Dawson, Loup River, Nebraska, Norris, Omaha, & Southern)	✓
Public Power Districts < \$40 million	✓
Community Colleges	X
Douglas-Sarpy Learning Community Coordinating Council	X
Natural Resources Districts	X
Metropolitan Utilities District of Omaha	X
Reclamation Districts	X
Educational Service Units	X

Candidates required to submit a Form C-1 must file a statement covering the preceding calendar year, regardless of if they ran for or held public office that previous year. Applicable statutes are Neb. Rev. Stat. §§ [49-1493](#) to [49-1494](#).

Candidates for U.S. Senate and U.S. House of Representatives do not need to file a Form C-1. Candidates for these offices should contact the Federal Election Commission (FEC) for campaign-related questions: [fec.gov](https://www.fec.gov)

Where can I find the Form C-1?

You can find the Form C-1 on the NADC's website at nadc.nebraska.gov. You may also file a Form C-1 online at nadc-e.nebraska.gov.

Can I email or fax my Form C-1?

The NADC accepts Form C-1s by hard copy, fax, and email. It must be received by the NADC on or before the following dates:

- March 2, 2026, for **all** primary election candidates
- July 15, 2026, for general election incumbents
- August 3, 2026, for general election nonincumbents

What happens if I miss the deadline to file a Form C-1?

There is a five-day grace period before a candidate is removed from the ballot. The NADC will accept Form C-1s for primary election candidates up until March 9, 2026. If your Form C-1 is not filed by that date, your name will not appear on the primary election ballot (Neb. Rev. Stat. [§49-1494](#)). General-only candidates who fail to file their Form C-1 within 5 days after their candidate filing deadline will not appear on the general election ballot.

Do I have a conflict of interest?

Questions regarding conflicts of interest should be directed to the NADC.

Is it too early to campaign or put out yard signs?

There is nothing in the Election Act that states when people can start campaigning. Double-check your local ordinances for any restrictions.

Contact the NADC if you have any questions.

Where am I prohibited from placing campaign materials?

Campaign materials cannot be displayed within 200 feet of a polling place or building designated for voters to cast ballots, except if it is private real property that is not under common ownership with the property on which the polling place or building is located (Neb. Rev. Stat. [§32-1524](#)).

Local ordinances and the Nebraska Department of Transportation's rules may also apply.

When can I start putting up yard signs, billboards, etc.?

The Election Act does not regulate when or how long campaign materials can be placed. Check local ordinances for restrictions.

Can I use the state seal in my campaign?

No — the use of the state seal is prohibited for political or campaign purposes and is limited to state government and educational use. Anyone who wishes to utilize the Great Seal must request written permission from the Secretary of State. Each request is evaluated to determine if it meets the guidelines.

Using the state seal is like having a stamp of state endorsement, which is a wholly inaccurate message if being conveyed by political campaigns or product marketing. As a recognized icon and honored symbol of the state, the Great Seal should be treated with integrity and respect.

What is electioneering?

Electioneering is defined in Neb. Rev. Stat. [§32-108.01](#), which states:

- (1) Electioneering means the deliberate, visible display or audible or physical dissemination of information for the purpose of advocating for or against:
 - (a) Any candidate for an office on the ballot for the election at which such display or dissemination is occurring;
 - (b) Any officeholder of an elected state constitutional office or federal office at the time of the election at which such display or dissemination is occurring; or
 - (c) Any political party on the ballot for the election at which such display or dissemination is occurring.
- (2) For purposes of this section, information includes: (a) A candidate's name, likeness, logo, or symbol; (b) a button, hat, pencil, pen, shirt, sign, or sticker containing information described by this section; and (c) audible information or any literature, writing, or drawing referring to a candidate, an officeholder, or a political party described in this section.

Can I campaign at the polls?

No — electioneering is prohibited within two hundred feet of a polling place or any secure ballot drop-box (Neb. Rev. Stat. [§32-1524](#)). This includes county election officials' offices during early voting.

Where can I get a list of people who were sent an early voting ballot?

Campaigns can request a list of those who have voted early in statewide elections by contacting the Secretary of State's office at sos.elect@nebraska.gov. The early voting list is public record pursuant to Neb. Rev. Stat. §§ [32-948](#) and [84-712.01](#) and does not include any information that is considered confidential under Neb. Rev. Stat. [§84-712.05](#).

Where can I get a list of registered voters?

Campaigns may request a Nebraska Voter Registration file from our office after completing a Public Service Request Form. The form can be found on our website at sos.nebraska.gov/elections/voter-file-requests. The cost of the file is \$500 and can be purchased with cash, money order, or check made payable to the Secretary of State.

The file contains no more than the registrant's name, residential and mailing address, phone number, registration status, voter identification number, year of birth, date of registration, precinct, polling place, party affiliation, district details, and voter history. The file shall be used solely for the purposes related to elections, political activities, voter registration, law enforcement, or jury selection. The file shall **not** be posted, displayed, or used for commercial purposes or made accessible on the internet.

Campaigns may also contact the county election official for a voter file if they do not need the whole Nebraska file. County election officials can charge up to \$0.03 per name according to Neb. Rev. Stat. [§32-330](#).